

Cal.App.4th 48, 63.)

The settlement agreement includes an escalator provision, to be triggered in the event that the number of covered employees or work weeks turns out to be materially higher than now estimated. If the clause is triggered and the defendant elects to increase the total payment, no further approval will be needed. The parties are cautioned, however, that in the event the clause would result in a significant modification of the settlement (such as cutting back the covered period), it would be prudent to seek further approval from the Court.

C. Attorney Fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation and administration costs and the requested representative payment of \$10,000 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07.

D. Discussion and Conclusion

The Court finds that the settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

Counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. Five percent of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

11. 9:00 AM CASE NUMBER: C25-00347
CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
HEARING ON ORDER TO SHOW CAUSE IN RE: ON PLEADINGS
FILED BY:

TENTATIVE RULING:

Defendant’s motion for judgment on the pleadings is calendared for September 24. The case management conference is also continued to that date. The orders to show cause are discharged.

12. 9:00 AM CASE NUMBER: C25-00957
CASE NAME: EAST BAY MUNICIPAL UTILITY DISTRICT VS. MATT KAUFFMAN

***HEARING ON MOTION IN RE: DISMISS CCP 430.10 AND HOLD PLAINTIFF IN CIVIL CONTEMPT
FILED BY: CHANDLER, JOHN B.**

TENTATIVE RULING:

Although neither side has drawn attention to the point, the Court observes from the judicially noticeable materials provided that Kauffman's 2010 bankruptcy was a no-assets discharge. The Court accordingly **continues** this motion to June 11, 2026, at 9:00 a.m. On or before May 29, each side should file a short supplemental brief addressing the potential relevance of *In re Beezley*, 994 F.2d 1433 (9th Cir. 1993).

**13. 9:00 AM CASE NUMBER: C25-01159
CASE NAME: ANGELLA JACKSON VS. OAKLEY UNION ELEMENTARY SCHOOL DISTRICT
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: OAKLEY UNION ELEMENTARY SCHOOL DISTRICT
*TENTATIVE RULING:***

Before the Court is Defendant Oakley Union Elementary School District's Demurrer to Plaintiff's First Amended Complaint.

Defendant's Demurrer is **sustained with leave to amend** for the reasons set forth below.

Background and Factual Allegations

Plaintiff filed her initial complaint on April 25, 2025, alleging a single cause of action for breach of contract against Defendant Oakley Union Elementary School District. A stipulation to allow the filing of a First Amended Complaint (FAC) was filed on November 24, 2025. The operative FAC was filed on December 11, 2025. The District filed its demurrer to the FAC on January 21, 2026.

The FAC includes the 2-page Form Complaint – Contract (PLD-C-001), civil case cover sheet, a Declaration of Angella Jackson which purports to authenticate and attach nine exhibits. As for the causes of action alleged, the Form Complaint states:

8. The following causes of action are attached and the statements above apply to each (each complaint must have one or more causes of action attached):
- ☐ Breach of Contract
 - ☐ Common Counts
 - ☒ Other (specify): *Negligence, Civil Rights Violations; Emotional Distress; Educational Harm*
9. ☒ Other allegations: *See attached complaint narrative and continuation pages.*

While the above section notes that the 'causes of action' are attached, and the Form Complaint makes clear that each complaint "must have one or more causes of action attached," there are no 'causes of action' forms attached to the FAC. Nor is there a statement or other document attached which sets forth the elements and/or facts supporting each of the above identified 'Other' causes of action purportedly asserted by the FAC.

Upon reviewing the documents attached to the FAC it appears that the general gist of Plaintiff's complaint relates to claims that her son was bullied while attending a school within the District in